

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #1	CCRB Case #: 202007307	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/04/2020 9:00 PM	Location of Incident: 252 South 4th Street	Precinct: 90	18 Mo. SOL 5/4/2022	EO SOL 5/4/2022	
Date/Time CV Reported Thu, 11/05/2020 9:59 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/05/2020 9:59 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ramil Casimir	05184	950170	090 PCT
2. POM Rodney Fernandez	16671	957580	090 PCT
3. POF Cecely Beniquez	12351	960232	090 PCT
4. POM Jonathan Baez	02411	965942	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Karl Thomas	23368	962838	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ramil Casimir	Abuse: Sergeant Ramil Casimir stopped § 87(2)(b)	
B.SGT Ramil Casimir	Force: Sergeant Ramil Casimir pointed his gun at § 87(2)(b)	
C.POF Cecely Beniquez	Abuse: Police Officer Cecely Beniquez frisked § 87(2)(b)	
D.POM Rodney Fernandez	Abuse: Police Officer Rodney Fernandez frisked § 87(2)(b)	
E.POM Jonathan Baez	Abuse: Police Officer Jonathan Baez frisked § 87(2)(b)	
F.POM Jonathan Baez	Abuse: Police Officer Jonathan Baez frisked § 87(2)(b) Unknown.	
G.POM Jonathan Baez	Abuse: Police Officer Jonathan Baez searched the vehicle in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b), § 87(2)(g)		

Case Summary

§ 87(2)(b) called the CCRB on November 5, 2020 and filed this complaint via the call processing system. § 87(2)(b) filed the complaint on behalf of herself, her boyfriend § 87(2)(b) his brother § 87(2)(b) and a friend she only knew as § 87(2)(b)

On November 4, 2020, at approximately 9:00 p.m., § 87(2)(b) and § 87(2)(b) sat in a van that was parked on the sidewalk behind 252 South 4th Street in Brooklyn. § 87(2)(b) was seated in the driver's seat. Sgt. Ramil Casimir, PO Rodney Fernandez, and PO Cecely Beniquez, from the 90th Precinct, stopped the individuals in the parked vehicle (**Allegation A: Abuse of Authority:** § 87(2)(g) While approaching, Sgt. Casimir pointed his gun at § 87(2)(b) (**Allegation B: Force:** § 87(2)(g) Sgt. Casimir called for backup and PO Karl Thomas and PO Jonathan Baez, from the 90th Precinct, responded. PO Beniquez frisked § 87(2)(b) PO Fernandez frisked § 87(2)(b) PO Baez frisked § 87(2)(b) and § 87(2)(b) (**Allegations C-F: Abuse of Authority:** § 87(2)(g) PO Baez then searched the vehicle (**Allegation G: Abuse of Authority:** § 87(2)(g) Due to an emergency at the 90th Precinct stationhouse, the officers left the scene without issuing any summons or arresting anyone. § 87(2)(g), § 87(4-b)

There were seven Body-Worn Camera (BWC) videos associated with this case. Two videos belonged to Sgt. Casimir, two for PO Baez, one for PO Beniquez, one for PO Fernandez and one for PO Thomas (Board Review 01-07).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Ramil Casimir stopped § 87(2)(b)

Allegation (B) Force: Sergeant Ramil Casimir pointed his gun at § 87(2)(b)

§ 87(2)(b) sat in a silver Chrysler Town & Country with her boyfriend § 87(2)(b) her boyfriend's brother § 87(2)(b) and a friend that she only knew as § 87(2)(b) § 87(2)(b) sat in the driver's seat, § 87(2)(b) sat in the front passenger seat, § 87(2)(b) sat behind the driver's seat and § 87(2)(b) sat behind the front passenger seat. The van was parked on the sidewalk behind § 87(2)(b), which is located at 252 South 4th Street in Brooklyn. § 87(2)(b) stated that her family knows the owners of the § 87(2)(b) and they let them park on the sidewalk. The sidewalk was not lit very well, and the interior lights of the car, as well as the engine, were off. § 87(2)(b) and the three other individuals sat in the vehicle and watched the 2020 Presidential Election on a laptop. There was no alcohol in the car but there was marijuana on the floor of the front passenger seat. § 87(2)(b) denied that the marijuana was lit and stated that it was packaged in a bag. She stated that the amount of marijuana was under the limit imposed by the city at the time. They sat in the car for approximately one hour and had not noticed anyone around, including police. An unmarked black Chevy Impala pulled up next to them on the curb and three uniformed officers exited the vehicle. Sgt. Casimir approached the vehicle from the front and pointed his gun at § 87(2)(b) and said, "stop moving." § 87(2)(b) did not see at what point Sgt. Casimir holstered his weapon (Board Review 08).

§ 87(2)(b) and § 87(2)(b) did not cooperate with the investigation. § 87(2)(b)'s friend, § 87(2)(b) could not be identified.

Sgt. Casimir stated that the previous day, November 3, 2020, he was on patrol and witnessed a two-toned colored van parked on the sidewalk near South 4th Street and Borinquen Place that had temporary license plates. There were several individuals doing work on an electric scooter. Sgt. Casimir stated that there was an ongoing issue in that neighborhood with people stealing

motorcycles and scooters by loading them into the back of mini vans. Sgt. Casimir's driver, whom he did not recall, performed a U-Turn to stop the individuals working on the scooter. The individuals ran into the van and drove off in a hurry once they saw Sgt. Casimir. Sgt. Casimir did not recall if the scooter was still at the location or if it was put into the van before they fled. Sgt. Casimir's vehicle pursued the van for an unknown number of blocks. Sgt. Casimir made the decision to terminate the vehicle pursuit because it was not worth the risk of injury to himself or anyone else.

At approximately 9:00 p.m. on November 4, 2020, Sgt. Casimir observed the same van with the same colors, same temporary plates, parked in the same spot, and facing the same direction. PO Fernandez double-parked next to a line of legally parked cars and the van was parked on the sidewalk, next to the passenger side of the legally parked cars. The van faced the opposite direction of the legally parked cars. Sgt. Casimir exited the front passenger seat of his vehicle, walked through the line of parked cars and approached the van from the front. He saw § 87(2)(b) and § 87(2)(b) in the front two seats of the van, moving around in their seats. The area was dark, and Sgt. Casimir needed a flashlight to see. The windows were closed, and Sgt. Casimir was not able to see inside the van through the side windows but once he was able to see through the front windshield, he saw § 87(2)(b) reach behind the driver's seat. Sgt. Casimir drew his weapon for safety reasons because he did not know why § 87(2)(b) reached behind his seat. Sgt. Casimir was not comfortable with the way the individuals in the van were moving around. Sgt. Casimir pointed his gun at the driver through the front windshield and when he came around (Board Review 11).

PO Fernandez stated that he did not witness Sgt. Casimir's initial approach of the van because he remained in the vehicle in case the van tried to flee. Sgt. Casimir communicated to him that he had tried to stop the van on a prior occasion and that it fled (Board Review 12).

PO Beniquez also stated that Sgt. Casimir communicated to her that he had attempted to pull over the same van on a prior occasion and that it fled. PO Beniquez exited the police vehicle from the rear passenger seat on the driver's side, walked around the back of the police vehicle, turned left and walked between the police vehicle and a legally parked car. PO Beniquez then turned right towards the sidewalk. She passed through the legally parked vans and approached the passenger side of the van from the rear. As PO Beniquez approached, the van's windows were tinted to the point where she could not see inside. All she could see was the light from a laptop screen inside. Due to the route she took to approach the van, she did not witness Sgt. Casimir point his gun at § 87(2)(b) (Board Review 13).

Sgt. Casimir's first BWC video shows the officers pulling over at the location. Sgt. Casimir exits the vehicle from the front passenger's seat and maneuvers through the legally parked cars. At 00:56 he points his gun in front of him as he approaches the two-toned van parked on the sidewalk. There is no audio at this point. Sgt. Casimir lowers his weapon at 00:59 and approaches the van. Sgt. Casimir asks § 87(2)(b) to roll the window down but at 01:08, § 87(2)(b) opens the door instead. Sgt. Casimir points his flashlight into the vehicle and asks § 87(2)(b) where the keys to the car are. At 01:28, Sgt. Casimir asks, "Why are you guys parked on the sidewalk?" § 87(2)(b) replies, "Hanging out." Sgt. Casimir then states, "You know you can't park on the sidewalk, right? Let alone smoking." Sgt. Casimir then walks away and lets PO Fernandez speak to them. At 08:40, § 87(2)(b) states, "You're lucky you never got shot before." Sgt. Casimir replies, "Why would I want to get shot? What are you talking about?" § 87(2)(b) states, "Then don't point your gun at us, I got shot before." Sgt. Casimir states, "I said 'don't move so don't make furtive movements when I walk up to the car.'" § 87(2)(b) replies, "we just looked at you." At 10:25, Sgt. Casimir receives a call from an unknown captain. Sgt. Casimir states, "I'm at a car

stop. I'm about to cut them loose. It's one of the guys that dipped on us the other day." Sgt. Casimir then turns off his camera (Board Review 02).

In Sgt. Casimir's second BWC video, he approaches the vehicle again and tells the other officers that they have to leave. At 01:48 § 87(2)(b) states, "Sergeant, you have to understand. If somebody points a gun at you, are you gonna stand there like a dickhead or are you gonna move? You're gonna make a funny movement if someone points a gun at you. That's why we made a funny movement. You pointed a gun at us." Sgt. Casimir hands § 87(2)(b) and § 87(2)(b) a business card and then leaves towards his police vehicle (Board Review 03).

In PO Beniquez's BWC video, at 00:43 seconds, Sgt. Casimir is seen in the front passenger seat and he turns his head to look at the sidewalk. The car abruptly stops, and Sgt. Casimir exits immediately. There is no audio in this portion of the video. PO Beniquez exits and follows behind Sgt. Casimir. At 00:49 seconds, Sgt. Casimir draws his gun and walks through two parallel parked cars towards the sidewalk. PO Beniquez turns left and approaches the van from the rear, thereby obstructing the view of Sgt. Casimir. At 01:00 Sgt. Casimir is back into view and he holsters his weapon (Board Review 01).

People v. Robinson, 74 N.Y.2d 773 held that car stops were inherently and inordinately dangerous to police officers (Board Review 09).

Patrol Guide Procedure 221-01 states that the decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of service determines that the potential for serious physical injury is no longer present, the uniformed member will holster the firearm as soon as practicable (Board Review 10).

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Cecely Beniquez frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Rodney Fernandez frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Jonathan Baez frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Jonathan Baez frisked § 87(2)(b) Unknown.

Allegation (G) Abuse of Authority: Police Officer Jonathan Baez searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated in her interview that there was marijuana in the vehicle, and she stated that it was on the floor of the front passenger seat. § 87(2)(b) denied that anyone smoked marijuana in the vehicle. She stated that she knew the vehicle was searched because belongings in the car seemed to be moved around but she did not know who did the search (Board Review 08).

Sgt. Casimir stated during his CCRB interview that there was a strong odor of marijuana emanating from the vehicle and that he could see a cloud of smoke inside. He stated that he searched the vehicle and the trunk of the van but did not recall if anyone was frisked or searched (Board Review 11).

PO Fernandez, who approached § 87(2)(b) on the driver's side, stated that there were marijuana rolling papers in a metal tray on § 87(2)(b)'s lap. There was no lit marijuana in the vehicle, but it smelled like one had recently been burned. He did not recall who searched the van. He recalled frisking § 87(2)(b) for safety when everyone was asked to step out of the vehicle but did not know what happened with the other individuals in the van (Board Review 12).

PO Beniquez was consistent with PO Fernandez that she smelled the marijuana in the vehicle and saw the marijuana residue on the metal tray. She knew that the vehicle was searched but she did not know who did it. PO Beniquez recalled that she frisked § 87(2)(b) after she stepped out of the van (Board Review 11).

At 01:28 of Sgt. Casimir's first BWC video, Sgt. Casimir asks, "Why are you guys parked on the sidewalk?" § 87(2)(b) replies, "Hanging out." Sgt. Casimir then states, "You know you can't park on the sidewalk, right? Let alone smoking." (Board Review 02).

In PO Beniquez's BWC, at 01:11, § 87(2)(b) is seen with a metal tray on his lap, however the contents are not clear in the video (Board Review 01).

At 06:15 of PO Baez's first BWC video, PO Baez shines his flashlight into the van's driver's side. He puts his hand into the side pocket of the driver's side door. He then illuminates the floor where the pedals are and then leans in to look in the gap between the driver's seat and front passenger seat. At 06:40 a small hookah is seen in the center of the middle seat row and at least two blue hoses are visible. PO Baez picks up the laptop on the seat to look underneath and shines his light into the center area holding the small hookah. PO Baez looks into the pouch behind the driver's seat. At 07:40, PO Baez goes to the right side of the van, uses his flashlight to look at the floor of the front passenger side, then checks the pouch behind the passenger seat. There are two Newport cigarette boxes on top of the seat in the middle row, which PO Baez opens and looks inside both of them. PO Baez then reaches into the rear row of seats and shines his light into a yellow bubble envelope and two backpacks. One of the backpacks was open and the other he opened by unzipping the main pocket (Board Review 06).

At 04:49 of PO Fernandez's BWC video, § 87(2)(b) and PO Fernandez have a brief conversation in Spanish. § 87(2)(b) states, "I have an ounce here" and points to the floor between the driver's seat and front passenger's seat. PO Fernandez replies, "Leave that there. You know I don't care about that. What I need you to do is put [the tray] on top of [the dashboard] and calmly step out" (Board Review 04).

People v. Chestnut, 43 A.D.2d 260 established that the odor of marijuana is sufficient to provide officers with probable cause to search an automobile and its occupants (Board Review 14).

People v. Norman, 142 A.D.3d 1107 (N.Y. App. Div. 2d Dept September 21, 2016) determined that People v. Chestnut's findings applied to situations where the odor of marijuana emanated from a parked vehicle (Board Review 15).

It is undisputed that there was marijuana present inside of the vehicle based on § 87(2)(b)'s

explicit acknowledgement, the paraphernalia visible in the BWC videos, and conversations between officers and individuals in the vehicle discussing its presence. § 87(2)(b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)

§ 87(2)(b)

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 24).
- Sgt. Casimir has been a member of service for nine years and has been a subject in 12 CCRB complaints and 24 allegations, none of which were substantiated. § 87(2)(g)
- PO Fernandez has been a member of service for six years and has been a subject in six CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)
- PO Beniquez has been a member of service for five years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Baez has been a member of service for two years and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 1, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 29).
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (Board Review 26).

- § 87(2)(b)
- § 87(2)(b)

Squad No.: 1

Investigator: SI Harold Rodriguez 6/7/21
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 6.8.21
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date